

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 18
JUDICIAL OFFICER: DANIELLE K DOUGLAS
HEARING DATE: 11/21/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued.

Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D18. Zoom is approved for all hearings except Issue Conferences and Trials. **Dept. 18's telephone number is: (925) 608-1118.**

NOTE: In order to minimize the risk of miscommunication, Dept. 18 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 18's email address is: dept18@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 18 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00652
CASE NAME: YOLANDA ADAMS VS. JORGE BELTRAN-AGUIRRE
*HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT
FILED BY: ADAMS, YOLANDA
TENTATIVE RULING:

The motion for leave to file a second amended complaint is granted.

2. 9:00 AM CASE NUMBER: C23-01467
CASE NAME: BILLY HOLDMAN VS. STEPHAN LINDSTROM
*HEARING ON MOTION IN RE: SUBSTITUTE OCTAVIA HOLMAN AS ADMINISTRATOR OF ESTATE
FILED BY: HOLDMAN, BILLY
TENTATIVE RULING:

Granted.

3. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL (FOR PLAINTIFF CATALINA MARTINEZ)
FILED BY:
TENTATIVE RULING:

Granted. The order granting counsel's motion to be relieved as counsel for Catalina Martinez shall be effective upon the filing of the proof of service of the signed order upon the client.

4. 9:00 AM CASE NUMBER: C23-02994
CASE NAME: NICOLETTE GRANZELLA VS. STEVEN SACKS
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: PRIME SMOKED MEATS, INC.
TENTATIVE RULING:

Before the Court is Defendant Prime Smoked Meats, Inc. ("Defendant" or "Prime Smoked Meats")'s Demurrer to Plaintiff Nicolette M. Granzella, Successor Trustee of the Richard P. Granzella Trust, as Amended and Restated ("Plaintiff")'s First Amended Complaint ("FAC").

The FAC alleges causes of action for (1) breach of fiduciary duty (against Sacks), (2) accounting (all Defendants), (3) conversion (all Defendants), (4) constructive trust (all Defendants), (5) false promise (all Defendants), (6) intentional misrepresentation (against Sacks), (7) negligent misrepresentation (against Sacks), (8) constructive fraud (all Defendants), (9) negligence (all Defendants), and (10) financial elder abuse (against Sacks).

Defendant demurs to the third, fifth, and eighth causes of action pursuant to § 430.10(e) on several grounds.

For the following reasons, the Demurrer is **overruled**.

Brief Factual Allegations

This case arises out of the shutdown of a family business, Prime Smoked Meats. Prime Smoked Meats was formed in 1958 by Al Sacks, who left the business to his children Steven Sacks and Lanie Sacks-Granzella. Plaintiff is a successor trustee of the Richard P. Granzella Trust, which holds the 50% interest in Prime Smoked Meats Richard P. Granzella inherited from Lanie Sacks-Granzella upon her death. The First Amended Complaint alleges that, among other things, Granzella has been denied a one-half share of the proceeds from the sale of the warehouse out of which Defendant operated.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday*